

**FIRST INFORMATION REPORT
(U/s 173 B.N.S.S.)**

Book No. **1428**

Serial No. **017**

1. District: PS: Year: FIR No.: Date:
New Delhi CBI/ACB/New Delhi 2024 RC0032024A0045 25.11.2024
2. (1) Act - PC Act 1988 Sections: 7
(as amended in 2018)
(2) Act - Sections:
(3) Act - Sections:
(4) Other Acts & Sections-
3. (a) Suspected Offence- **Demand of undue advantage by public servant.**
(b) Day: Date: Time:
(c) Information received at PS: **CBI, ACB, New Delhi** Dated: **07.11.2024**
Entry No. **2** Date: **25.11.2024** Time: **8:05 A.M.**
4. Type of information – (Written / Oral): **Written**
5. Place of occurrence **Delhi**
(a) Direction & Distance from

Beat No. -

(b) Address:

(c) In case, outside the limit of this Police Station, then

Name of PS - District -

6. Complainant / Informant: credible source information

(a) Name : Mohd. Rizwan

(b) Father's/Husband's Name : Shri Ibrahim

(c) Date of Birth :

(d) Nationality : Indian

(e) Passport No. **NA** Date of Issue **NA** - Place of issue **NA**

(f) Profession : **Private Person**

(g) Address : **E-1/66, New Seelampur, Delhi-53**

7. Details of known/suspected/unknown accused with full particulars: -
(Attached separate sheet, if necessary)

**Shri Devender Kumar @ Devender Yadav, License Inspector, MCD,
Shahdara, New Delhi.**

8. Reasons for delay in reporting by the complainant/informant: -

No delay

9. Particulars of properties Stolen (Attach separate sheet, if necessary):

10. Total value of property stolen: -

11. Inquest Report/U.D. Case No., if any,: -

12. First information contents (Attach separate sheet, if required):

Written complaints dated 07.11.2024 & 20.11.2024 from Mohd. Rizwan, S/o Shri Ibrahim, R/o E-1/66, New Seelampur, Delhi were received in Office and verified. The Complaints and verification reports dated 08.11.2024, 21.11.2024 & 25.11.2024 which are enclosed herewith, prima facie disclose commission of offence punishable U/s 7 of PC Act 1988 (as amended in 2018) on the part of Sh. Devender Kumar @ Devender Yadav, License Inspector, MCD, Shahdara, New Delhi.

Therefore, a regular case U/s 7 of PC Act 1988 (as amended in 2018) is registered against Sh. Devender Kumar @ Devender Yadav, License Inspector, MCD, Shahdara, New Delhi and entrusted to Sh. Rajender Chaudhary, Inspector, CBI, ACB, New Delhi for investigation.

**ANTECEDENT AND CHARACTER VERIFICATION REPORT DATED 23.11.2024 OF
SUSPECT OFFICER DEVENDER YADAV.**

In the continuation of verification report dated 21.11.2024, which revealed that Devender Yadav, MCD Official, Shahdra, Delhi demanded bribe amount of Rs 60,000/- from the complainant in lieu of allowing him to open/ operate his shops at E-1/66, New Seelampur, Delhi-53 and further directed him to come to meet him on Monday with demanded amount of Rs 60,000/-.

In the course of Antecedent and Character Verification of suspect officer in the instant matter, it has been revealed from the source that suspect officer name is Devender Kumar @ Devender Yadav and he is posted as License Inspector in MCD Office Shahdara Delhi. It is also revealed that Devender Kumar @ Devender Yadav is habitual for his corrupt activities.

In the view of the above mention facts, it is recommended to register a regular case U/s 7 of PC Act- 1988 (as amended in year 2018) against Sh. Devender Kumar @ Devender Yadav, License Inspector, MCD Shahdara, New Delhi.

[Signature]
25/11/24

DURGADAS RATHORE
Inspector of Police
CBI/ACB/New Delhi

**Verification Report in CO- 82/2024 CBI/ACB/New
Delhi DATED 21.11.2024**

Today i.e. 21.11.2024, a complaint dated 20.11.2024 in continuation of complaint dated 07.11.2024 was submitted by Md. Rizwan, S/o Ibrahim, R/o E-1/66, New Selampur, Delhi-53 to SP,CBI/ACB/Delhi, which was endorsed to the undersigned, i.e. Durgadas Rathore, Inspector, CBI, ACB, New Delhi as Verifying Officer with the assistance of Aakash Srivastav, SI, CBI, ACB, Delhi for verification. The presence of independent witness Sh. Yogesh Kumar, TA, CGST O/o Commissioner Delhi South, Bhikaji Cama Place, Delhi was secured in CBI Office through Duty Officer. Purpose of assembly was explained to the independent witness. SP, CBI, ACB, Delhi directed verifying officer to meet complainant at nearby residential address due to scarcity of time.

The hand written complaint dated 07.11.2024 & 20.11.2024 submitted by the complainant were read over and explained to the independent witness. In the complaint, it is alleged that complainant has 03 shops below his residential house, in which complainant earlier used to work of Iron Sheet. In 2023, MCD sealed these 3 shops of complainant. After that, Karkaduma Court passed order to De-seal those shops of complainant. After de-sealing, 02 shops were rented and 01 shop was still vacant.

It is further alleged that few days ago, Mr. Devendra Yadav, MCD officer came to shop of complainant and told him that he (Mr. Devendra Yadav, MCD officer) has received a complaint that Court has passed order to open only one shop but against this court order, more number of shops are being opened by complainant (Md. Rizwan). After that, complainant and his elder brother namely Md. Ayub went to MCD



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office Shahdara and met Devendra Yadav and informed him by showing the copy of court order to open three shops but Devendra Yadav did not agree. After that Devendra Yadav demanded a bribe of Rs. 1 lakh in lieu of opening 02 shops otherwise to take action against the complainant. On being requested by the complainant, suspect officer Devendra Yadav agreed on the amount of 60,000/-.

It is further alleged that on 20.11.2024, a person came to resident of complainant and told him to meet Sh. Devender Yadav in the matter of his shops. Accordingly, Complainant made call over the mobile phone of Sh. Devender Yadav and during the said call, suspect officer Devender Yadav asked about demanded bribe amount of Rs. 60,000/- and directed complainant to meet him in the office of MCD, Shahdra, Delhi on 21/11/2024.

The complainant did not want to pay the bribe amount to Sh. Devendra Yadav, MCD Officer and hence submitted the complaint to SP, CBI, ACB, Delhi for taking legal action against Sh. Devendra Yadav, MCD Officer, Shahdra, New Delhi.

In order to verify the allegations levelled in the complaint, a new memory card of 16 GB capacity and a new DVR (Sony made) were arranged. The memory card was taken out of its original packet. After explaining function of the DVR to the independent witness, the said memory card was inserted in the DVR in the presence of independent witness. And after ensuring blankness of DVR and memory card, the introductory voice of the independent witness Sh. Yogesh was recorded through DVR in the said memory card.

Thereafter, in order to verify the allegation made in the complaint, I and SI Aakash Kumar Srivastav along with independent witness left the CBI Office in private vehicle at about 10:40 Hrs for



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Selampur, Delhi to meet the complainant. At about 11:40 Hrs, CBI team along with independent witness in private vehicle reached at Silampur Metro Station, where complainant Md. Rizwan and his brother Md. Ayub were already present. Thereafter, CBI team along with independent witness, complainant and his brother left the spot and reached nearby Welcome Metro Station at about 11:52 Hrs, where vehicle was parked at safer distance in order to avoid any suspicion by the Suspect officer.

Meanwhile, complainant and above named independent witness were mutually introduced to each other and the purpose of assembly was again explained to all present. After giving necessary briefing in the vehicle, the complainant along with his brother was directed to meet the above said suspected officer and have a conversation with him to ascertain the demand of bribe. The above said independent witness was asked to follow the complainant by maintaining the distance with him in order to avoid any suspicion by the Suspect officer and try to see the person with whom the complainant will converse and try to overhear the conversation as far as practically possible. Thereafter, the DVR was affixed with the complainant in recording and hold mode. Afterwards, at about 11:56 Hrs, the complainant and his brother followed by the independent witness went to MCD office, Shahdra, Delhi. I and SI Aakash Kumar Srivastav remained present in the car.

Thereafter, at about 12:20 Hrs the complainant along with his brother and independent witness came back to the parked vehicle. After reaching to the vehicle, the DVR was taken back from the complainant by SI Aakash Srivastav and removed from hold mode and switched off.

The complainant was asked to narrate the incident then in his narration he stated that he along with his brother Md. Ayub reached at



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the basement of MCD office, Shahdra and suspect officer has not been found present in his cabin and after few minutes, suspect officer Devender Yadav came in his cabin.

Complainant further narrated that he informed suspect officer that last time he (complainant) had arranged demanded amount by borrowing from known persons but, as you (suspect officer) was in hurry and asked him (complainant) to come later, complainant had returned that amount to concerned person, from whom, he borrowed.

Complainant further narrated that he told suspect officer to take Rs. 20,000/- demanded bribe amount, which he had arranged and further requested to give some time to pay remaining amount of bribe money i.e. 40,000/-. On which suspect officer told what can he do.

Complainant further narrated that he told suspect officer that Rs.60,000/- is big amount for him on which suspect officer told that it doesn't happen like this.

Complainant further narrated that he enquired suspect officer that this should not happen within one or two month that there may be another case. This was not replied by suspect officer. Further suspect officer informed that person (who submitted complaint against Md. Rizwan) was pressurizing and therefore complainant (Md. Rizwan) would have to settle this within 01-02 days. On which complainant requested suspect officer that he would arrange and give only Rs. 30,000/- tomorrow and he would give remaining amount of Rs.30,000/- on Monday. On which suspect officer told complainant to come on Monday with full demanded bribe money i.e. Rs. 60,000/-

Complainant further narrated that he requested suspect officer not to take any action against him, if he been late by 1-2 days in arrangement of demanded bribe amount of Rs. 60,000/-. On which suspect officer assured complainant that he would support him

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(complainant) and suspect officer further assured complainant that no action would be taken.

Independent witness was asked to narrate the incident, on which he told that he followed the complainant Md. Rizwan and his brother, who reached MCD office, Shahdra, Delhi. Thereafter, complainant and his brother went to basement/ parking of MCD office, where complainant and his brother were seen to enter in cabin.

Independent witness further narrated that after a spam of 10-12 minutes, complainant and his brother came out the cabin and moved toward the parked vehicle, where CBI team was awaiting.

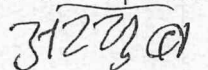
Thereafter, at about 12:25 Hrs., CBI team, independent witness, complainant along with his brother left the spot in vehicle and at about 1315 Hrs reached CBI office. The recorded conversation of DVR was also heard through the DVR, which also corroborated the version of the complainant and independent witness.

The Memory Card was taken out from the DVR and an investigation copy of the Memory Card was prepared with the help of Write Blocker in the official Desktop in the presence of independent witness and complainant. The Memory Card was then kept in its plastic cover and the plastic cover was kept in its paper cover and the paper cover was signed by the complainant Md. Rizwan, Md. Ayub, Independent witness Sh. Yogesh, VO Durgadas Rathore & AVO Aakash Srivastav and further was marked as "Q-1 in CO-82/2024". Then the paper cover was kept in brown envelope and sealed with CBI Seal in the presence of Independent Witness. The brown envelope was signed by the verification team members along with independent witness, complainant and his brother Md. Ayub. The brown envelope was also marked as "Q-1 in CO-82/2024" and taken in police possession vide this memo. The specimen seal impression in ink has been taken on verification memo as well as on separate sheet of papers in lac and ink



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for future requirements in the presence of independent witness and these separate sheets were signed by the independent witness and VO. The seal was given to the independent witness with direction to produce on 22.11.2024 for further proceedings.

The verification prima facie reveals that Sh. Devendra Yadav, MCD, Shahdra, Delhi has demanded Rs. 60,000/- as bribe amount from the complainant to settle his matter/ complaint and allow him to operate his shops, and agreed to receive Rs. 60000/- on Monday.

The verification memo was prepared in CBI office. The proceedings of this memo concluded at 2100 hrs on 21.11.2024. This memo is being signed by the verification team including independent witness, the complainant Md. Rizwan and Md. Ayub. Complainant Md. Rizwan, Md. Ayub and the independent witness were directed to be present at CBI office on the next day i.e. 22/11/2024 at 1000 Hrs for the purpose of further verification.

Hence, the verification is being kept open to explore the antecedent of suspect person Sh. Devender Yadav, MCD, Shahdra, Delhi.

Rizwan
21/11/24
Md. Rizwan
(Complainant).

Yadav
21-11-24
Sh. Yogesh Kumar
Independent Witness

Aakash
21/11/24
Aakash Srivastav
Sub-Inspector,
CBI, ACB, New Delhi

Durgadas
21/11/24
Durgadas
Inspector,
CBI, ACB, New Delhi

Md. Ayub
21/11/24
Md. Ayub
(Brother of complainant)



1 Recd Sample Seal
Yadav
21-11-24

Verification Report

On 07.11.2024, a hand written complaint in Hindi dated 07.11.2024 submitted by Md. Rijwan S/o Ebrahim, R/o E 1/66 New Seelampur Delhi - 53 to SP, CBI/ACB/Delhi, which was endorsed to the myself, i.e. Durgadas, Inspector, CBI, ACB, New Delhi as Verifying Officer for verification of the complaint with the assistance of Inspector, Ashutosh Tiwari.

On the same day i.e. on 07.11.2024 at around 5:30 PM I along with Inspector Ashutosh, met with the complainant and asked about his grievances mentioned in the said complaint. In the complaint, it is alleged that complainant has 03 shops on the ground floor of his above mentioned residential address, wherein he used to do work of Iron Sheets. In 2023, MCD sealed his said 03 shops and later he got order from the Kaddadoma Court for de-sealing of his 03 Shops. Now he doesn't work in the said 03 shops, out of which 02 shops are on rent and one shop is vacant.

It is further alleged in the said complaint that a few days ago one Mr. Devendra Yadav, MCD Officer, came to shops of complainant and intimated him that there is a complaint against him (complainant) wherein, it is said that there is order for opening only one shop but more number of shops are being opened by the complainant. After that, complainant along with his brother Md. Ayub went to MCD Office, Shahdra and met with Mr. Devendra Yadav and informed him by showing court order to open all 03 shops but Devender Yadav didn't agree. After that Mr. Devendra Yadav demanded Rs.01 Lakh for opening of the said 03 Shops and threatened the complainant to take action If, he didn't gave him the said bribe amount. After that on being requested/negotiated by the complainant, Suspect officer Devender Yadav agreed to take Rs. 60,000/- instead Rs. 1,00,000/-. As the complainant didn't want to give the said bribe, he lodged the said complaint for taking action against Mr. Devendra Yadav, MCD officer.



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On 07.11.2024 as it was around 06:00 PM the complainant informed that the Suspect Officer would not be available in his office, accordingly it was decided that the team would reach/assemble in Shahdra next day i.e. on at 10 AM for verification of the allegation mentioned in the complaint. Md. Rijwan was also directed to remain present there.

On 8.11.2024 at around 9:40 AM the presence of an independent witness Sh. Vinay Kumar, Assistant Grade-III, FCI-HQs, New Delhi was secured through Duty Officer and he was briefed about the matter and purpose of assembly and was shown the said complaint dated 07.11.2024. After that a fresh Memory Card and DVR was arranged through Duty Officer. After that after ensuring blankness of DVR and memory card, the introductory voice of the independent witness was recorded in the memory card through DVR. After that the team consisting of CBI team along with the above said independent witness departed from the CBI office for Shahdra Area at around 10:15 AM on 08.11.2024 in official Car.

Thereafter, the team reached near Seelampur Metro Station in Shahdra. After that the complainant Md. Rijwan joined the team along with his brother Md. Ayub. After that on the direction of VO, a few calls were made by the complainant to the Suspect Officer by keeping the mobile phone in speaker mode in the presence of aforesaid independent witness, but the Suspect Officer didn't pick up any call. At that time it was informed by the complainant that he would be comfortable in meeting with the Suspect officer with his brother Md. Ayub. After that it was decided to send the complainant with his brother Md. Ayub to meet the suspect officer. The independent witness was also briefed to remain with the complainant and hear and observe the conversation between the complainant and the Suspect officer. The team moved towards the MCD Office, Shahdra and placed the official car near the MCD office. After that



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The DVR (having the memory Card) was handed over to the complainant in Record and hold mode. The complainant and his brother Md. Ayub followed by independent witness moved towards MCD office, Shahdra.

After some time the complainant and his brother Md. Ayub followed by the independent witness came to the Car, the DVR was taken back from the complainant and swathed off after removing the same form Hold Mode.

After that the complainant was asked to narrate the incidence, on which complainant narrated that he along with his brother reached the MCD office and met with Mr. Devendra Yadav, MCD Officer there, but Mr. Devendra Yadav was in hurry as he was going somewhere therefore, he asked the complainant to come later on. After that the complainant came back to the CBI team.

After that the independent witness was asked about incidence, on which he narrated that he didn't enter the MCD office with the Complainant and his brother for the sake of secrecy but he seen that the complainant alongwith his brother was went inside the MCD office and came after some time.

Thereafter, the team left the spot and reached CBI office. After that the above mentioned memory card, used for recording the conversation in this verification, was removed from the DVR and a copy of this memory card was prepared using write blocker for investigation purposes, in presence of independent witness. This memory card was then kept in its original paper cover which was marked as **"Q-1 in Verification Report dated 08.11.2024"**. The said paper cover was signed by Inspector Durgadas (VO), Inps. Ashutosh Tiwari, witness Sh. Vinay Kumar, Md. Ayub and complainant Md. Rijwan. Thereafter, the paper cover was then kept in a brown envelope which was marked as **"Q-1 in Verification Report dated 08.11.2024"**. The brown envelope was signed by Inspector Durgadas (VO), Inps. Ashutosh Tiwari, witness Sh. Vinay Kumar, Md. Ayub and complainant Md. Rijwan. This envelope was sealed with CBI seal.



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Ashutosh Tiwari
08/11/24

Ashutosh Tiwari
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Rijwan
08/11/24

Vinay Kumar
08/11/24

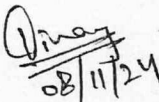
The specimen seal impression in lac and ink has been taken on separate sheet of paper and these sheets were signed by the independent witness and Inspector Durgadas. The facsimile impression of seal was also taken in ink on each page of verification Report.

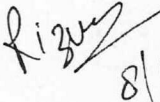
The seal was handed over to the independent witness for safe custody under acknowledgement with the direction to produce CBI Brass Seal, as and when required

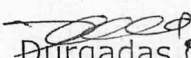
This verification Report has been prepared in CBI Office and the Report is being signed by signatories of this Report in token of its correctness. The proceeding of the Report concludes at 03:00 PM hrs.

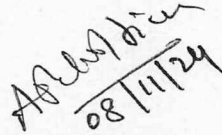
The verification has not confirmed any demand of on the part of Suspect Officer Mr. Devendra Yadav from the complainant; however suspect officer has directed the complainant to contact him later, as he is busy today. In the view of above mentioned fact, it is recommended that the verification of the instant complaint may be kept open for further proceedings.

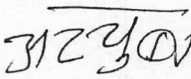
Complainant was directed to contact the verifying officer, if suspect officer or any other person in the behalf of suspect officer contacts or demand him bribe money for the aforesaid work/ matter in recent future.


08/11/24
Sh. Vinay Kumar
Independent Witness

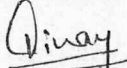

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Md. Rijwan
Complainant


8/11/24
Durgadas,
Inspr./CBI/ACB/
New Delhi


08/11/24
Ashutosh Tiwari
Insp. CBI, ACB, Delhi


8/11/24
Md. Ayub
Complainant's brother

Received a CBI seal.


08/11/24



सेवा में

श्रीमान पुलिस अधीक्षक

CBI ACB Delhi

विषय - विशाक्त मांगने के खिलाफ शिकायत

महोदय मैं मौ० रिजवान SI0 इब्राहिम

R/O H/66 न्यू सीलमपुर Delhi-53

का रहने वाला हु मेरी इसी रिहाईशी

द्वार के नीचे 03 दुकानें हैं जिसमें मैं

पहले आभरण बीट का काम करता था

व०२३ में मेरी 03 दुकानों को सील कर

दिया गया MCO द्वारा उसके बाद मैंने

कड़कड़मा कोर्ट से 03 दुकानें खोलने का

आदेश लिया तथा तीनों दुकानें खोल ली

जिसमें मैं अब काम नहीं करता तथा

02 दुकानें किराये पर दे दी हैं और

01 दुकान खाली है

कुछ दिनों पहले श्री देवन्द यादव

MCO officer मेरी दुकान पर आए

और मुझे बताया कि मेरे खिलाफ उनके

पास शिकायत आई है जिसमें मेरी

केवल 1 दुकान खोलने का आदेश है

उसके बाद मैं और मेरा बंध भाई

SI Durgam
SI. V. V. V.
and others.

Rajiv Kumar
7/11/24

MCD officer शाहदर गार और वहा झाँ देवन्द
यादव से मिले और उन्हें बताया कि कोर्ट
दुआ मेरी तीन दुआने खोलने का आदेश
है जैसे उन्हें आदेश की कॉपी न्या फिलार्ड
पर वो नही माने उसके बाद उन्हे 02
दुआने खोलने के बदले 1 लाख रुपये कि
विशवत की मांग को नही तो मेरी दुआने
के खिलाफ कार्यवाही करने की बात की
मेरे रिक्वेस्ट करने पर वो 1 लाख की जगह
600000 लेने पर मान गये

तथा मैं विशवत नही देना चाहता हुआ
देवन्द यादव MCD officer के खिलाफ
कार्यवाही करे

मुझे 08/11/2024 को पैसा लेकर बुलाया है

Rizwan

श्री० रिजवान

E1/66 न्यू

सौलमपुर

Delhi-53

7838643473

सेवा में

श्रीमान पुलिस अधीक्षक

CBI ACB Delhi

विषय देवेन्द्र थाक रिवत मांगने के खिलाफ शिकायत
महोदय मैं मैं रिववान 510 इबाहिम R10 न्यू
सीलिमपुर Delhi 53 का रहने वाला हूँ

मेरा शिकायत पत्र दिनांक 11/11/2024

जिसमें मैं बताया था कि 2023 में मेरी 03
दुल्हानें MCD द्वारा सील किया गया जिसे डी
सील करने का आदेश कड़कड़ूम कोर्ट ने
दिया था परन्तु इस आदेश के विपरीत श्री
देवेन्द्र थाक MCD ऑफिसर ने बताया कि
केवल 01 दुल्हान डी सील करने का आदेश
दिया गया है। श्री देवेन्द्र थाक ने मेरी 02
दुल्हानें शोलम्बे के बदले 1 लाख रुपये की
मांग की थी जो कि मेरे अनुरोध पर
600000 रुपये रिवत पर माने

आज दिनांक 20/11/2024 एक व्यक्ति

मेरे घर आया और उपरोक्त विषय में
देवेन्द्र थाक से मिलने का कहा उसके
बाद मैंने देवेन्द्र थाक को Phone किया
देवेन्द्र थाक ने Phone पर मांगें गर

P1. pending
4 put up.

20/11

20/11/2024

7838643473

Delhi 53

कर्मचार्य

E/166 ए

श्री विद्या

Kishu

कर्मचारी

श्री विद्या ए/166 कर्मचारी MCD Officer के निवास

श्री विद्या ए/166 कर्मचारी

श्री विद्या ए/166 कर्मचारी

श्री विद्या ए/166 कर्मचारी MCD Officer के निवास

श्री विद्या ए/166 कर्मचारी

13. Action taken : Since the above information reveals commission of offence (s) u/s as mentioned at Item no. 2

(1) Registered the case and took up the investigation or

Regular Case is registered

(2) Directed (Name of IO): Rank: No. Took up for investigation

Shri Rajender Chaudhary

Inspector, CBI, ACB, Delhi

(3) Refused investigation due to or

(4) Transferred to PS - District - on point of jurisdiction -

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Signature of Officer in-charge
Police Station:

Name: **Rajiv Kumar**
Rank: **Supdt. of Police**
CBI:ACB: Delhi

RAJIV KUMAR
I/c Supdt. of Police
CBI, ACB, New Delhi

15. Date and time of dispatch to the Court

Signature of recording Officer with date